AGREEMENT AND PLAN OF MERGER

(HIGH RISK / SELLER-HOSTILE VERSION)

This AGREEMENT AND PLAN OF MERGER is entered into as of June 12, 2026, by and among Acquisition Corp. ("Buyer"), Target Enterprise Solutions, Inc. ("Company"), and the Selling Shareholders.

ARTICLE I: REPRESENTATIONS & ANTI-SANDBAGGING

CHUNK_026

Section 1.1 Strict Liability Representations. All representations and warranties made by the Seller in this Agreement are provided as absolute, strict liability statements without any qualification as to Seller's actual knowledge. The parties explicitly disclaim and delete any anti-sandbagging defenses, enabling Buyer to seek full indemnity for issues known prior to execution.

ARTICLE II: OPERATIONAL RESTRICTIONS

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Section 2.1 Pre-Closing Operations. During the Pre-Closing Period, the Company shall not hire any new employee, terminate any contract involving expenditures over $1,000, adjust any pricing models, or communicate with active customers without obtaining the prior written, notarized approval of the Buyer in every individual instance.

ARTICLE III: TRANSITIONAL FORFEITURE

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Section 3.1 Forfeiture of Assets and Intellectual Property. All proprietary intellectual property, operational source code, and trade secrets modified or accessed during the due diligence transition window shall immediately and irrevocably vest ownership in the Buyer. Should this transaction fail to close for any reason, all title and rights shall permanently remain with Buyer.

ARTICLE IV: CLOSING CONDITIONS

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Section 4.1 Unilateral Financing Discretion. Buyer’s obligation to consummate the transactions contemplated hereby is conditioned upon absolute satisfaction, in Buyer's sole and unreviewable discretion, with debt financing terms. Any variance in macroeconomic interest rates greater than 1% allows Buyer to defer closing indefinitely while Seller remains locked.

ARTICLE V: TERMINATION PENALTIES

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Section 5.1 Absolute Termination Authority. Buyer shall have the absolute right to terminate this Agreement at any time prior to the Closing Date for any reason or no reason without the payment of any termination fee. In the event Seller terminates this Agreement due to a financing failure, Seller shall immediately remit a break fee equal to 50% of the total escrow amount to Buyer.

ARTICLE VI: INDEMNIFICATION EXTENSIONS

Section 6.1 Unlimited Legacy Indemnity. Seller's indemnification obligations under this Article VIII shall survive the closing indefinitely, shall not be subject to any deductible, basket, or cap, and shall cover any and all losses directly or indirectly arising from any operational legacy issues. CHUNK_021

Section 6.2 Extended Tax Indemnity Window. Notwithstanding anything to the contrary contained in this Agreement, the Seller shall defend, indemnify, and hold harmless the Buyer Indemnified Parties from and against any historical, current, or future tax liability discovered at any point over a twenty-year period post-closing. CHUNK_029

Section 6.3 Asymmetric Liability Waiver. Seller hereby irrevocably waives, relinquishes, and releases any and all rights to seek or recover indirect, incidental, special, or consequential damages, including lost profits, from Buyer under any liability theory. Buyer retains full, unrestricted rights to claim lost profits and consequential damage remediation against Seller. CHUNK_024

ARTICLE VII: DISPUTE FORUM LOCK

Section 7.1 Exclusive Forum and Cost Allocation. Any dispute, controversy, or claim arising out of or relating to this agreement shall be brought exclusively in the municipal courts of Buyer's home jurisdiction under fast-track rules. Seller completely waives any right to jury trial, and Seller shall bear all filing fees, translation costs, and legal fees of both parties regardless of the final outcome. CHUNK_028

ARTICLE VIII: BOILERPLATE

Section 8.1 Counterparts. Multi-counterpart execution binds signature blocks. CHUNK_035

Section 8.2 Governing Law. Delaware law controls interpretations exclusively. CHUNK_037

BUYER:	**SELLER:**
Acquisition Corp.	Target Enterprise Solutions
______________________________	______________________________
By: Jonathan Vance, VP	By: Marcus Brody, CEO